

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO H.B. 2105
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 42-11053, Arizona Revised Statutes, is amended
3 to read:

4 42-11053. Investigating property valuations

5 A. The department shall:

6 1. Investigate property valuations and any matters relating to
7 property taxes and shall require the production of any private or public
8 record relating to those valuations or property taxes.

9 2. NOTIFY THE OWNER OR POSSESSOR OF THE PROPERTY THAT AN INSPECTION
10 WILL OCCUR AND PROVIDE THE DATE OF THE INSPECTION. THE DEPARTMENT IS NOT
11 REQUIRED TO PROVIDE THE NOTICE REQUIRED BY THIS PARAGRAPH BY CERTIFIED
12 MAIL.

13 3. PROVIDE A COPY OF THE INSPECTION REPORT TO THE OWNER OR
14 POSSESSOR OF THE PROPERTY.

15 B. The director or the director's agent may:

16 1. Enter on and examine any property in this state to determine its
17 full cash value. If the owner or possessor of property refuses entrance
18 to the director or the director's agent, the director may estimate the
19 valuation of the property.

20 2. Require any officer whose duties relate to assessing or
21 collecting taxes to report to the director at the time and in the manner
22 that the director prescribes.

23 Sec. 2. Section 42-12158, Arizona Revised Statutes, is amended to
24 read:

25 42-12158. Inspections by county assessor

26 A. The county assessor or the assessor's deputies shall:

27 1. Make an on-site inspection of twenty-five percent of the
28 property classified as being used for agricultural purposes each year.

1 2. Make an on-site inspection and appraise all of these properties
2 within every four years.

3 3. If the county assessor or the assessor's deputy determines that
4 the property does not meet the criteria for agricultural classification,
5 notify the property owner pursuant to section 42-12156.

6 4. NOTIFY THE PROPERTY OWNER BEFORE AN INSPECTION OCCURS AND
7 PROVIDE THE DATE OF THE INSPECTION. THE COUNTY ASSESSOR IS NOT REQUIRED
8 TO PROVIDE THE NOTICE REQUIRED BY THIS PARAGRAPH BY CERTIFIED MAIL.

9 5. PROVIDE A COPY OF THE INSPECTION REPORT TO THE PROPERTY OWNER.

10 B. A PROPERTY THAT MEETS THE CRITERIA FOR AGRICULTURAL
11 CLASSIFICATION IS NOT SUBJECT TO AN ON-SITE INSPECTION FOR THE THREE-YEAR
12 PERIOD AFTER THE DATE OF THE MOST RECENT ON-SITE INSPECTION CONDUCTED
13 PURSUANT TO THIS SECTION UNLESS ONE OF THE FOLLOWING OCCURS:

14 1. THE PROPERTY OWNER FILES A CHANGE IN THE USE NOTICE PURSUANT TO
15 SECTION 42-12156, SUBSECTION A.

16 2. THERE IS A SPLIT OF THE PROPERTY.

17 3. THERE IS A CHANGE IN OWNERSHIP OR LEASE OF THE PROPERTY.

18 4. THERE IS A TAXABLE IMPROVEMENT MADE TO THE PROPERTY.

19 C. FOR THE PURPOSES OF THIS SECTION, THE COUNTY ASSESSOR MAY
20 DEVELOP A STANDARDIZED FORM FOR INSPECTION REPORTS.

21 [D. DURING THE THREE-YEAR PERIOD PRESCRIBED BY SUBSECTION B OF THIS
22 SECTION, IF THE COUNTY ASSESSOR CLASSIFIES A PREVIOUSLY UNREPORTED TAXABLE
23 IMPROVEMENT AS AGRICULTURAL PROPERTY, THE COUNTY ASSESSOR MAY ASSESS THE
24 APPLICABLE PROPERTY TAX ON THE IMPROVEMENT FOR THE CURRENT TAX YEAR AND
25 ANY PRIOR TAX YEAR IN WHICH THE IMPROVEMENT EXISTED.]

26 Enroll and engross to conform

27 Amend title to conform

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